

2017 WL 4767216 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Steven RODRIGUEZ, Plaintiff,

v.

THE CITY OF NEW YORK, Detective Jodi Brown, Shield No. 4057, Undercover Police Officer Shield No. 348, Sergeant Patrick Ovando, Shield No. 3047, Detective **Abdiel Anderson** Shield No. 1429, Detective Anthony Disimone, Shield No. 2215, and Police Officers John Does Numbers One Through Ten, Defendants.

No. 0029635-2017.
October 11, 2017.

The Basis of Venue is: Location of Incident
Plaintiff designates Bronx County as the place of trial.

Summons

[Stuart E. Jacobs](#), Esq., Jacobs & Hazan, LLP., 30 Vesey Street, 4th Floor, New York, New York 10007, (212) 577-2690, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff STEVEN RODRIGUEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Sections 1983](#) and [1988](#), and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 13, 2016, at approximately 2:00 p.m., plaintiff Steven Rodriguez, while lawfully present in front of 2813 Decatur Avenue, Bronx, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, and falsely arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff STEVEN RODRIGUEZ is a resident of the state of New York.

3. DETECTIVE JODI BROWN, Shield No. 4057, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JODI BROWN, Shield No. 4057, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

5. DETECTIVE JODI BROWN, Shield No. 4057, is being sued in her individual and official capacity.

6. UNDER COVER POLICE OFFICER Shield No. 348 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. UNDER COVER POLICE OFFICER Shield No. 348 is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

8. UNDER COVER POLICE OFFICER Shield No. 348 is being sued in their individual and official capacity.

9. SERGEANT PATRICK OVANDO, Shield No. 3047, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT PATRICK OVANDO, Shield No. 3047, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

11. SERGEANT PATRICK OVANDO, Shield No. 3047, is being sued in his individual and official capacity.

12. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

14. DETECTIVE **ABDIEL ANDERSON**, Shield No. 1429, is being sued in his individual and official capacity.

15. DETECTIVE ANTHONY DISIMONE, Shield No. 2215, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE ANTHONY DISIMONE, Shield No. 2215, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

17. DETECTIVE ANTHONY DISIMONE, Shield No. 2215, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their

duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

24. This action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#), involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

25. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

26. On July 13, 2016, at approximately 2:00 p.m., plaintiff was lawfully present in front of 2813 Decatur Avenue, Bronx, New York, when the defendant police officers unlawfully approached and falsely arrested plaintiff without reasonable suspicion, probable cause, or any legal justification.

27. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

28. The defendant officers had no objective factual basis to believe plaintiff committed, was about to commit or was committing a crime.

29. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff or from plaintiff's possession custody or control.

30. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers without legal justification or probable cause.

31. Plaintiff was transported by the defendant police officers to the 52nd Precinct against his will.

32. At the 52nd Precinct, plaintiff was searched, photographed, fingerprinted and then placed in a holding cell by the defendants.

33. At no time did the defendant police officers inform plaintiff of why he was being arrested.

34. At no time relevant herein did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

35. After approximately 7 hours in custody, plaintiff was transported from the 52nd Precinct to Bronx County Central Booking and placed in a holding cell.

36. On July 14, 2016, at approximately 9 p.m., after being unlawfully detained for approximately 31 hours, plaintiff was arraigned in Bronx County Criminal Court and charged with crimes he did not commit without probable cause or legal justification and released on his own recognizance.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment of plaintiff.

38. The unlawful search, false arrest, and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FORTH CAUSE OF ACTION Negligent Infliction of Emotional Distress

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Steven Rodriguez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

57. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION Negligent Hiring, Retention, Training and Supervision

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION Failure to Intervene

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

67. Defendants failed to intervene to prevent the unlawful conduct described herein.

68. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION Denial of Right to Fair Trial

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 72 with the same force and effect as if fully set forth herein.

74. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

75. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

76. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

77. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Steven Rodriguez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to [42 U.S.C. § 1988](#).

Dated: New York, New York October 11, 2017

By: /s/

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